

On July 19, 2025, Plaintiff CL La Fiesta Square CA LP (“Plaintiff”) served Defendant Urban Remedy, Inc. (“Defendant”) with its first set of form interrogatories including approximately 17 form interrogatories. Defendant provided responses to 10 requests and provided only objections to the remaining, including Interrogatory No. 15.1, which asks Defendant to identify each denial of a material allegation and each special or affirmative defense in its pleadings and to state all facts on which such denial or defense is based, and to identify witnesses with knowledge of the facts or documents that support the denials or defenses.

Defendant responded that the request was “vague, ambiguous, and overbroad as applied in this context.” This court disagrees.

This matter involves an allegation of a breach of a commercial lease for failing to pay rent. The Defendant filed an answer on January 27, 2025, in which they asserted a general denial and nine affirmative defenses for which this interrogatory seeks support. The court does not find the request to be vague, ambiguous or overbroad as it seeks support for Defendant’s own assertions. Defendant’s objections lack merit and are overruled. The court orders Defendant to provide Plaintiff with code-compliant objection free further responses to Form Interrogatory 15.1 by February 20, 2026.

Sanctions may be imposed if the court finds that the party provided “an evasive response to discovery” or “oppos[ed] a motion to compel without substantial justification.” (California Code of Civil Procedure §2023.010(f), (h)). The court finds both grounds supported here.

Plaintiff’s request for sanctions is GRANTED, however, the court finds them excessive. Defendant for the most part complied with the other requests for Form Interrogatories. Sanctions are ordered in the amount of \$450, payable to Plaintiff by February 20, 2026.

2. 9:00 AM CASE NUMBER: C25-01000
CASE NAME: VINUBHAI PATEL VS. JAMES, COOKE & HOBSON, INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM, SPECIAL INTEROGS AND PROD OF DOCS**
FILED BY: JAMES, COOKE & HOBSON, INC
TENTATIVE RULING:

Vacated.

Courtroom Clerk's Session

3. 1:30 PM CASE NUMBER: C24-02163
CASE NAME: RYAN WAGNER VS. DARRELL JONES
SETTLEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

The parties are to appear in person for good faith settlement discussions.